

2. 9:00 AM CASE NUMBER: C24-02532
CASE NAME: ANGEL'S EXCAVATION & CONSTRUCTION, INC VS. JESICA RODRIGUEZ
*HEARING ON MOTION IN RE: SET ASIDE DEFAULT JUDGMENT AGAINST NON-PARTICIPATING
PARTY WHO COULD NOT OTHERWISE BE LIABLE AS A MATTER OF LAW
FILED BY: RODRIGUEZ, JESICA MARIELA
TENTATIVE RULING:

Before the Court is Defendant Jessica Rodriguez ("Defendant")'s "Motion in Equity to Set Aside Default Judgment Against Non-Participating Party" ("Motion"). The Motion is opposed by Plaintiff Angel's Excavation & Construction, Inc. dba Angel's Excavation & Earthwork ("Plaintiff").

Defendant moves pursuant to Code of Civil Procedure section 473(b) and (d) on several grounds.

For the following reasons, the motion is **DENIED**.

Evidentiary Objections

First, Plaintiff objects to the evidence proffered by Defendant on reply.

"The general rule of motion practice . . . is that new evidence is not permitted with reply papers. . . '[T]he inclusion of additional evidentiary matter with the reply should only be allowed in the exceptional case . . . ' and if permitted, the other party should be given the opportunity to respond." (*Jay v. Mahaffey* (2013) 218 Cal.App.4th 1522, 1537-1538.) Reply evidence should not address substantive issues in the first instance but only fill gaps in the evidence created by opposition. (*Id.* at 1538.)

In its discretion, the Court declines to consider Defendant's new reply evidence.

Procedural History

Plaintiff filed a verified complaint for (1) breach of written contract, (2) breach of a loan agreement, (3) breach of the covenant of good faith & fair dealing, and (4) declaratory relief on September 20, 2024. The Proof of Service of Summons on file indicates that Defendant was served by substituted service on October 14, 2024.

Defendant did not file a response to the Complaint. On December 17, 2024, when no responsive pleading had been filed and served, Plaintiff filed a request for default. A default was entered against the Defendant the same day.

Plaintiff filed a request for Court Judgment on March 10, 2025. Ultimately, an amended judgment was entered on August 29, 2025 in the amount of \$974,003.21.

Defendant filed the instant motion to set aside default judgment on December 8, 2025.

Standard

Defendant moves to set aside the default judgment pursuant to California Code of Civil Procedure ("CCP") §473(b).

Code of Civil Procedure 473(b) provides, in relevant part:

The court may, upon any terms as may be just, relieve a party or his or her legal representative from a judgment, dismissal, order, or other proceeding taken against him or her through his or her mistake, inadvertence, surprise, or excusable neglect. Application for this relief shall be accompanied by a copy of the answer or other pleading proposed to be filed therein, otherwise the application shall not be granted, and shall be made within a reasonable time, in no case exceeding six months, after the judgment, dismissal, order, or proceeding was taken.

When moving to set aside a default under CCP §473(b), the moving party has the burden of proof. (*In re Marriage of Kieturakis* (2006) 138 Cal.App.4th 56, 88.) However, section 473 is often applied liberally when a party in default moves promptly to seek relief and the party opposing the motion will not suffer prejudice if relief is granted. (*Elston v. City of Turlock* (1985) 38 Cal.3d 227, 233.)

Defendant also moves pursuant to subsection (d) which reads: “The court may, upon motion of the injured party, or its own motion, correct clerical mistakes in its judgment or orders as entered, so as to conform to the judgment or order directed, and may, on motion of either party after notice to the other party, set aside any void judgment or order.”

Analysis

As a threshold issue, section 473(d) addresses the situation where the judgment is “void,” such as when the defendant has not been properly served. While Defendant’s motion indicates subsection (d) as an alternative basis for relief, her legal basis for this ground is unclear. She does not argue improper service, and it is uncertain on what other basis she contends the judgment is void. Defendant has not demonstrated grounds for relief under subsection (d).

With respect to subsection (b), when a party seeks relief from a default, “[a]pplication for this relief ... shall be made within a reasonable time, in no case exceeding six months, after the ... order ... was taken.” (CCP §473(b).) Default was entered on December 17, 2024. The Amended Judgment was entered on August 29, 2025.

In perhaps a tacit admission that the six-month time limit has run with respect to her default, Defendant’s motion is directed solely at the default judgment. However, as explained further below, setting aside the default judgment without a corresponding set aside of the default would be an idle act.

The court in *Pulte Homes Corp. v. Williams Mechanical, Inc.* (2016) 2 Cal.App.5th 267 provides a succinct overview of the proper analysis:

[Defendant’s] motion was filed less than six months after entry of the default judgment, but more than six months after entry of its default. The trial court therefore could not set aside the default under Code of Civil Procedure section 473. And because it could not set aside the default, it also could not set aside the default judgment under Code of Civil Procedure section 473, because that would be ‘an idle act.’ (*Howard Greer Custom Originals v. Capritti* (1950) 35 Cal.2d 886, 888[.]) ‘If the judgment were vacated, it would be the duty of the court immediately to render another judgment of like effect, and the defendants, still being in default, could not

be heard in opposition thereto. ...” (*Id.* at 273.)

The California Supreme Court in *Howard*, quoted by *Pulte Homes*, includes an even more in-depth explanation of this legal tenet:

The setting aside and vacating the judgment alone, which was all the relief sought in said motion, would have been an idle act, because the default . . . would have stood undisturbed. The default cut off defendants from making any further opposition or objection to the relief which plaintiff's complaint shows he is entitled to demand. A defendant against whom a default has been entered is out of court and is not entitled to take any further steps in the cause affecting plaintiff's right of action; he cannot thereafter, until such default is set aside in a proper proceeding, file pleadings or move for a new trial, or demand notice of subsequent proceedings. . . . [citing cases] . . . If the judgment were vacated it would be the duty of the court immediately to render another judgment of like effect, and the defendants, still being in default, could not be heard in opposition thereto. ...” (*Howard*, *supra*, 35 Cal.2d at 888-89 citations omitted.)

Defendant has not sought to have her default set aside. While the current request to set aside the Amended Judgment may be timely, the Court is without power to set it aside as doing so would be an ‘idle act.’ (*Pulte Homes Corp.*, *supra*, 2 Cal.App.5th at 273.) Even if the Court set aside the Amended Judgment, it would be required to thereafter enter a new final judgment – without input from Defendant as she is and would remain in default.

Accordingly, Defendant’s Motion is **DENIED**.

3. 9:00 AM CASE NUMBER: C24-03337
CASE NAME: MARICRUZ DIMAS-MARTINEZ VS. HELIO DIMAS
***HEARING ON MOTION IN RE: BE RELIEVED AS COUNSEL RE: JOSEPH A. LEPERA**
FILED BY: DIMAS, HELIO
TENTATIVE RULING:

Joseph A. Lepera and the other named attorneys of Lepera + Associates, PC (“Counsel”) filed two separate motions to be relieved as counsel on December 5, 2025 (the “Motions to be Relieved as Counsel”). The matters were both set for hearing on April 20, 2026.

Background

Counsel seeks to be relieved as attorneys for defendants Helio Dimas and Susana Dimas (“Defendant”).

The supporting declarations filed by Counsel indicates that there has been a breakdown in the attorney-client relationship due to a breach of the Attorney-Client Agreement and by conduct which has “rendered it unreasonably difficult to carry out their representation effectively.” See Declarations filed December 5, 2025, ¶2. Defendants have been given notice of the Motions to be Relieved as Counsel. *Id.* at ¶3.

Thereafter, Substitutions of Attorney were filed as to both defendants on January 5, 2026 (the